

Arti Bhagat vs . Deepak Kumar on 3 April, 2019

Author: Rajesh Bindal

Bench: Rajesh Bindal

HIGH COURT OF JAMMU AND KASHMIR
AT JAMMU

Regular List
item No. 11

CTA No. 43/2018 (O&M)
Date of order: 03.04.2019
Deepak Kumar

Arti Bhagat

vs.

CORAM:

HON'BLE MR. JUSTICE RAJESH BINDAL, JUDGE

Appearance:

For Applicant/Petitioner(s) : Mr. Pawan Kumar Kundal, Advocate.
For Respondent (s) : None.

Rajesh Bindal, J

01. Applicant approached this Court seeking transfer of the petition under Sections 6 & 13 of the J&K Hindu Minority and Guardianship Act read with Section 25 of the Guardian and Wards Act, 1977 for guardianship as also custody of minor children filed by the respondent from the court of Additional District Judge, Udhampur to the court of competent jurisdiction at Jammu. It is pleaded that the marriage between the parties was solemnized on 27.06.2012. As the applicant was harassed, she had to leave the house of the respondent alongwith twin minor daughters and is living with her parents at Jammu. Her minor daughters are school going. She has no source of income and is dependent on her parents, whereas respondent is a person of means. He is serving as Government Teacher in Primary School Ratti Mitti, Udhampur. Moreso, there being no one to accompany the applicant to attend the court at Udhampur, it will not be possible for the applicant to defend the case.

02. Learned counsel for the applicant submitted that she has filed two other cases at Jammu, i.e., petition under Section 488 CrPC for grant of maintenance, which is pending before the learned Judicial Magistrate Ist Class (Sub Judge), Jammu, and a compliant under Section 23 of J&K Protection of Women From Domestic Violence Act, 2010 before the learned 2nd Additional Munsiff (JMJC), Jammu, which the respondent-husband is contesting at Jammu. Prayer has been made for transfer of the petition to the court of competent jurisdiction at Jammu.

03. No response to the petition has been filed.

04. The issue regarding transfer of case from one Court to another has been discussed by Courts in numerous judgments. In Kulwinder Kaur @ Kulwinder Gurcharan Singh v/s Kandi Friends

Education Trust and others, 2008 (3) SCC 659, Hon'ble the Supreme Court laid down certain parameters to be considered for the purpose, while opining that the same cannot be treated as exhaustive but illustrative in nature. The relevant Para- 14 thereof is extracted hereunder:

"Although the discretionary power of transfer of cases cannot be imprisoned within a straitjacket of any castiron formula unanimously applicable to all situations, it cannot be gainsaid that the power to transfer a case must be exercised with due care, caution and circumspection. Reading Sections 24 and 25 of the Code together and keeping in view various judicial pronouncements, certain broad propositions as to what may constitute a ground for transfer have been laid down by Courts. They are balance of convenience or inconvenience to plaintiff or defendant or witnesses; convenience or inconvenience of a particular place of trial having regard to the nature of evidence on the points involved in the suit; issues raised by the parties; reasonable apprehension in the mind of the litigant that he might not get justice in the court in which the suit is pending; important questions of law involved or a considerable section of public interested in the litigation;

interest of justice demanding for transfer of suit, appeal or other proceeding, etc. Above are some of the instances which are germane in considering the question of transfer of a suit, appeal or other proceedings. They are, however, illustrative in nature and by no means be treated as exhaustive. If on the above or other relevant considerations, the Court feels that the plaintiff or the defendant is not likely to have a fair trial in the Court from which he seeks to transfer a case, it is not only the power, but the duty of the Court to make such order."

1. The issue regarding transfer of matrimonial proceedings almost in similar circumstances came up for consideration before this Court in a number of cases earlier. It has been the consistent view that primarily convenience of the wife is to be given weightage for ordering transfer of proceedings at or near the place where she is residing.

5. This Court had earlier accepted the plea of wife for transfer of the case close to the place of her residence considering her difficulties. Reference can be made to Judgment of this Court in Jatinder Kour vs. Sharan Pal Singh, 2016 (1) JKJ 670 [HC] and Anju Bala vs. Narinder Kumar Bhagat, 2018 SCC Online J&K 533.

6. Recently, Hon'ble Supreme Court in Anupama Patil vs. Nataraj Veeranagouda Patil, 2018 (15) SCC 354 directed transfer of the Matrimonial case on request of the wife close to the place of her residence. Relevant para from the judgment is extracted below:

"As is evident from the cases referred to above, the principle of law with regard to transfer of cases especially regarding matrimonial disputes is quite settled, where consistent opinion is that it is always the convenience of wife which has to be given due weightage for ordering the transfer of proceedings at or near the place where the wife is residing."

7. In the present case, the applicant-wife is residing at Jammu. The petition under Section 6 & 13 of the J& K Hindu Minority and Guardianship Act read with Section 25 of the Guardian and Wards Act, 1977 for guardianship as also custody of minor children has been filed by the husband at Udhampur. Distance between the two places is about 60 KMs. She is mother of twin minor daughters and is dependent on her parents. Considering the fact that primarily it is convenience of the wife, which is of paramount consideration, in my opinion, the aforesaid petition filed by the respondent-husband at Udhampur deserves to be transferred to the court of Addl. District Judge (Matrimonial Cases), Jammu.

8. Ordered accordingly.

9. The parties to the litigation to appear before the court of Additional District Judge (Matrimonial Cases), Jammu on 29.05.2019. As the respondent remained un-presented before this Court, the transferee Court will summon him for the date to be fixed. If there are different cases fixed before the same Court between the same parties, efforts should be made to fix them on same date of hearing so as to minimize harassment of the parties.

10. Disposed of.

(Rajesh Bindal) Judge JAMMU 03.04.2019 Sunita Whether the order is speaking : Yes/No Whether the order is reportable : Yes